

Amba Steels v. M.D. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 17 November 2018 · Writ-C No. 48194 of 2008 · **Writ dismissed in terms of Dev Prayag Paper Mill**

HEADNOTE

Writ attacking an additional-security demand and clause 4.20(1) of the U.P. Electricity Supply Code, 2005 as ultra vires s.47(5) of the Electricity Act, 2003 is dismissed in terms of the Division Bench judgment dated 21.3.2017 in Writ-C No. 30898 of 2016 (Dev Prayag Paper Mill).

FACTUAL SUMMARY

Amba Steels challenged a Paschimanchal Vidyut Vitran Nigam demand for additional security for supply, which warned of action if unpaid in time, and also attacked clause (1) of para 4.20 of the U.P. Electricity Supply Code, 2005 — the phrase “as and when the distribution licence provides a choice to consumer to opt” — as ultra vires section 47(5) of the Electricity Act, 2003. Counsel accepted that identical writs had already been dismissed in Dev Prayag Paper Mill.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security; 4.20(1) vs s.47(5)

HOLDING

The writ challenging the additional-security demand and clause 4.20(1) of the U.P. Electricity Supply Code, 2005 (the words “as and when the distribution licence provides a choice to consumer to opt”) as ultra vires section 47(5) of the Electricity Act, 2003 is dismissed in terms of the judgment dated 21.3.2017 in Writ-C No. 30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P.). ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others</i> Writ-C No. 30898 of 2016 (21.3.2017)			1	Referred